

Amendment No. 1 to SB1464

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1464*

House Bill No. 2506

by deleting all language after the caption and substituting:

WHEREAS, the General Assembly finds that maintaining confidentiality of personal identifying information of federal, State, and local officers, agents, and officials engaged in the enforcement of federal and State immigration laws and sensitive information related to immigration enforcement operations in this State is paramount to the protection and safety of such officers, agents, and officials, the integrity of such enforcement operations, and public safety; and

WHEREAS, the General Assembly finds that protecting law enforcement officers engaged in the enforcement of federal and State immigration laws from threats, harassment, intimidation, and violence is necessary to preserve public safety, and that public access to government records when disclosure does not create a safety risk promotes transparency and public confidence in government; and

WHEREAS, the confidential maintenance of such information protects such persons from targeted harassment, threats, or violence due to their enforcement duties; prevents disclosure of sensitive information that could compromise immigration enforcement operations; maintains the public confidence in immigration enforcement activities by ensuring such persons can effectively carry out their duties without fear of retaliation; and aligns with existing privacy laws to protect federal and State law enforcement officers' and employees' personal identifying information; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 42, is amended by adding the following new section:

4-42-105.

(a) Notwithstanding another law to the contrary, each state governmental entity and official shall maintain the following information relative to the operational enforcement of federal and state immigration laws as confidential, and such information is not subject to public inspection:

(1) The name of a federal, state, or local officer, agent, or official participating in federal immigration enforcement activities in this state when the name is accompanied by contact information, a residential address, or other personal identifying information of the officer, agent, or official;

(2)

(A) The name of a federal, state, or local officer, agent, or official participating in federal immigration enforcement activities in this state if:

(i) The release would endanger the safety of the individual during an active or planned enforcement operation;

(ii) The individual is currently serving in an undercover capacity; or

(iii) A documented threat assessment by the supervising agency head, or a designee, demonstrates a specific, ongoing risk of harm; and

(B) Nothing in this subdivision (a)(2):

(i) Prevents the disclosure of information, including the name of the officer, relating to an investigation of alleged misconduct by a law enforcement officer to the extent required by law;

(ii) Prevents a state governmental entity or official from disclosing the name of an officer, agent, or official after the conclusion of an operation if the entity or official determines that disclosure does not present a reasonable risk to the safety of the officer, agent, or official or the integrity of current or future operations; or

(iii) Requires the name of an officer, agent, or official from being redacted from an affidavit, warrant, charging instrument, or other judicial record; and

(3) Information related to specific future immigration enforcement operational activities, such as the date and time, location, logistics, or strategies of such activities.

(b) Subsection (a) does not:

(1) Apply to information that is public pursuant to federal law or a court order; or

(2) Prohibit federal, state, and local law enforcement agencies and officers from sharing information necessary to facilitate the enforcement of federal and state immigration laws.

(c) Subsection (a) preempts any policy, procedure, or rule of a state governmental entity or official in conflict with subsection (a).

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 42, is amended by adding the following as a new section:

4-42-106.

(a) A state government official who, acting with criminal negligence, releases information in violation of § 4-42-105(a) commits a Class E felony.

(b) A state government official who, acting with criminal negligence, releases information in violation of § 4-42-105(a) is subject to ouster under title 8, chapter 47, if applicable.

(c) As used in this section, "criminal negligence" means the same as defined in § 39-11-106.

(d) This section does not preclude the enforcement of other applicable criminal and civil penalties under federal or state law.

SECTION 3. Tennessee Code Annotated, Title 7, Chapter 68, is amended by adding the following new section:

(a) Notwithstanding another law to the contrary, each local governmental entity and official shall maintain the following information relative to the operational enforcement of federal and state immigration laws as confidential, and such information is not subject to public inspection:

(1) The name of a federal, state, or local officer, agent, or official participating in federal immigration enforcement activities in this state when the name is accompanied by contact information, a residential address, or other personal identifying information of the officer, agent, or official;

(2)

(A) The name of a federal, state, or local officer, agent, or official participating in federal immigration enforcement activities in this state if:

(i) The release would endanger the safety of the individual during an active or planned enforcement operation;

(ii) The individual is currently serving in an undercover capacity; or

(iii) A documented threat assessment by the supervising agency head, or a designee, demonstrates a specific, ongoing risk of harm; and

(B) Nothing in this subdivision (a)(2):

(i) Prevents the disclosure of information, including the name of the officer, relating to an investigation of alleged misconduct by a law enforcement officer to the extent required by law;

(ii) Prevents a local governmental entity or official from disclosing the name of an officer, agent, or official after the conclusion of an operation if the entity or official determines that disclosure does not present a reasonable risk to the safety of the officer, agent, or official or the integrity of current or future operations; or

(iii) Requires the name of an officer, agent, or official from being redacted from an affidavit, warrant, charging instrument, or other judicial record; and

(3) Information related to specific future immigration enforcement operational activities, such as the date and time, location, logistics, or strategies of such activities.

(b) Subsection (a) does not:

(1) Apply to information that is public pursuant to federal law or a court order; or

(2) Prohibit federal, state, and local law enforcement agencies and officers from sharing information necessary to facilitate the enforcement of federal and state immigration laws.

(c) Subsection (a) preempts any policy, procedure, or rule of a local governmental entity or official in conflict with subsection (a).

(d)

(1) A local government official who, acting with criminal negligence, releases information in violation of subsection (a) commits a Class E felony.

(2) A local government official who, acting with criminal negligence, releases information in violation of subsection (a) is subject to ouster under title 8, chapter 47, if applicable.

(3) As used in this subsection (d), "criminal negligence" means the same as defined in § 39-11-106.

(e) This section does not preclude the enforcement of other applicable criminal and civil penalties under federal or state law.

SECTION 4. Tennessee Code Annotated, Section 7-68-102(3), is amended by deleting the subdivision and substituting:

(3) "Official" means an agent, employee, member, or representative of a local governmental entity and includes the mayor of a county, incorporated city or town, or metropolitan government; and

SECTION 5. Tennessee Code Annotated, Section 8-47-101, is amended by deleting the language "or who shall commit any act constituting a violation of any penal statute involving moral turpitude" and substituting instead:

or who shall commit any act constituting a violation of any penal statute involving moral turpitude, or who shall, acting with criminal negligence, unlawfully release confidential information relative to the operational enforcement of federal and state immigration laws

SECTION 6. Tennessee Code Annotated, Section 10-7-504(f)(1), is amended by adding the following new subdivision:

(L) The name of a law enforcement officer who is designated as working undercover during the period of undercover assignment and for a reasonable period thereafter if the law enforcement agency determines that disclosure would present a reasonable risk to the safety of the officer or to the integrity of current or future operations; provided, that this subdivision (f)(1)(L) does not apply to training or

certification records maintained by the peace officer standards and training commission created pursuant to § 38-8-102.

SECTION 7. Tennessee Code Annotated, Section 10-7-504(f)(9), is amended by deleting the subdivision.

SECTION 8. Tennessee Code Annotated, Section 10-7-504(f)(8), is amended by adding the following new subdivision (f)(8)(C) and redesignating the current subdivision (f)(8)(C) as subdivision (f)(8)(D):

(C) Any person required by law to treat information described in subdivision (f)(1)(I) as confidential commits an offense if the person acts with criminal negligence, as defined in § 39-11-106, in releasing the information to the public. A violation of this subdivision (f)(8)(C) is a Class E felony.

SECTION 9. Tennessee Code Annotated, Section 10-7-504(f)(8)(B)(i), is amended by deleting the language "punishable only by a fine of five hundred dollars (\$500)".

SECTION 10. Tennessee Code Annotated, Section 10-7-504(f)(8)(D), is amended by deleting the language "Subdivision (f)(8)(A)" and substituting "This subdivision (f)(8)".

SECTION 11. Tennessee Code Annotated, Section 10-7-504(g), is amended by adding the following new subdivision (g)(6):

(A) Any person required by law to treat information described in subdivision (g)(1) as confidential commits an offense if:

(i) The person acts with criminal negligence, as defined in § 39-11-106, in releasing the information to the public; or

(ii) The person knows the information is to be treated as confidential and intentionally releases the information to the public.

(B)

(i) A violation of subdivision (g)(6)(A)(i) is a Class B misdemeanor.

(ii) A violation of subdivision (g)(6)(A)(ii) is a Class A misdemeanor.

(C) Any person required by law to treat information described in subdivision (g)(1)(A)(iii) as confidential commits an offense if the person acts with criminal negligence, as defined in § 39-11-106, in releasing the information to the public. A violation of this subdivision (g)(6)(C) is a Class E felony.

(D) This subdivision (g)(6) does not apply if:

(i) The law enforcement personnel whose information is treated as confidential under subsection (g) expressly authorizes the release of such information; or

(ii) The information is released pursuant to court order.

SECTION 12. Section 1 of this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it, and applies to prohibited conduct occurring on or after that date.